MGT 302 · BUSINESS LAW AND ETHICS · EFFAT UNIVERSITY

Intellectual Property

Protecting ideas, brands and innovation in business

- Trademarks
- Trade names
- Patents
- Copyright
- Trade secrets



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AGENDA

What we will cover

01 What IP is and why it matters

02 The five main types of IP

03 IP protection in Saudi Arabia

04 Legal case studies

05 Ethical issues for businesses

06 Key takeaways

INTRODUCTION

What is intellectual property?

Intellectual property (IP) refers to **creations of the mind**, such as inventions, designs, names, symbols and artistic works, that the law protects so their owners can control how they are used.

Examples range from inventions like the telephone, to artistic works like books, to brand symbols like the Nike swoosh.

A valuable business asset

Brands, patents and know-how are often worth more than a company's physical assets.

An incentive to innovate

Exclusive rights let creators earn a return on the time and money they invest.

Trust for customers

Protected brands help customers know exactly who they are buying from.

OVERVIEW

The five main types of IP

TYPE	WHAT IT PROTECTS	EXAMPLE	TYPICAL PROTECTION PERIOD
Trademarks	Logos, words and symbols that identify a brand	Apple logo	10 years, renewable
Trade names	The official name a business operates under	Google LLC	While the business is registered
Patents	New inventions and technical solutions	Original iPhone patents	Usually 20 years
Copyright	Original creative works	Harry Potter books	Generally the author’s life + 50 years
Trade secrets	Confidential formulas, methods and processes	Coca-Cola formula	As long as it stays secret

Protection periods are typical terms; exact rules depend on each country’s law.

TYPE 1

Trademarks

A trademark is a symbol, word or phrase legally registered to represent a company or product. It builds brand recognition and stops others from misusing the brand.

- Distinguishes one company’s goods or services from another’s
- Registration gives the owner exclusive rights to use the mark
- Can be renewed, so a strong brand can be protected indefinitely

REAL-WORLD EXAMPLES

Apple logo · McDonald’s Golden Arches · Coca-Cola name · Nike swoosh

THE LEGAL VIEW

Infringement happens when another business uses a similar mark that is likely to confuse customers about who made a product.

TYPE 2

Trade names

A trade name is the official name under which a company does business. It identifies the business itself and sets it apart in the market.

- Identifies the company, while a trademark identifies its products
- Registered when the business is officially set up
- Can also be protected as a trademark when used as a brand

REAL-WORLD EXAMPLES

Google LLC

Almarai Company

Saudi Aramco

THE LEGAL VIEW

Using a trade name that is confusingly similar to an existing registered business can lead to legal disputes and unfair competition claims.

TYPE 3

Patents

A patent gives an inventor exclusive rights to an invention, so others cannot make, use or sell it without permission for a set period.

- The invention must be new, inventive and useful in industry
- Protection usually lasts 20 years from filing
- In return, the inventor publicly discloses how the invention works

REAL-WORLD EXAMPLES

- Wright brothers' airplane
- Original iPhone
- Telephone

THE LEGAL VIEW

Making or selling a patented invention without a license is infringement, and the owner can seek damages or stop the sales.

TYPE 4

Copyright

Copyright protects original works of authorship, such as music, literature, art and software, so creators control how their work is copied and shared.

- Protection starts automatically once a work is created
- Covers the expression of an idea, not the idea itself
- Generally lasts for the author’s life plus 50 years

REAL-WORLD EXAMPLES

- Harry Potter book series
- Songs and albums
- Films and software

THE LEGAL VIEW

Copying, distributing or performing a protected work without permission is infringement, including online piracy.

TYPE 5

Trade secrets

Trade secrets are confidential practices, designs, formulas or processes that give a business a competitive edge because others do not know them.

- No registration needed; protection depends on keeping it secret
- Protected through NDAs, access limits and employee contracts
- Lasts as long as the information stays confidential

REAL-WORLD EXAMPLES

- Coca-Cola formula
- Google's search algorithm
- KFC recipe

THE LEGAL VIEW

Stealing or leaking a trade secret, for example by an employee who moves to a competitor, is misappropriation and can be taken to court.

LOCAL CONTEXT

IP protection in Saudi Arabia

The **Saudi Authority for Intellectual Property (SAIP)** is the government body that protects and supports IP in the Kingdom.

Strong IP protection supports Vision 2030's goal of building an innovation-driven economy that attracts investment and new businesses.

Saudi Patent Office

Grants patents in industrial, commercial and agricultural fields.

Department of Trademarks

Handles trademark applications and registrations.

General Administration of Copyrights

Protects literary, artistic and scientific works.

CASE STUDIES

IP disputes in the real world

PATENTS & DESIGN

Apple v. Samsung

Apple sued Samsung in 2011, claiming its smartphones copied the iPhone's patented design and features. After years of trials and appeals, the companies settled in 2018.

Lesson: design and patents can be worth billions, and copying them carries serious legal risk.

TRADE SECRETS

Waymo v. Uber

Waymo accused a former engineer of taking confidential self-driving files to Uber. The case settled in 2018, with Uber giving Waymo a stake in the company.

Lesson: companies must control what employees can take when they leave.

ETHICS

Ethical issues for businesses

Counterfeit products

Fake goods mislead customers, can be unsafe, and damage the original brand's reputation.

Piracy

Copying music, films or software without paying takes income away from the people who created them.

Employee loyalty

Taking confidential know-how to a new employer breaks trust, even when the law is unclear.

Access vs. protection

Patents on medicines reward innovation but can make treatment unaffordable, raising questions of fairness.

Ethical businesses respect others' IP, protect their own fairly, and do not use IP rights to exploit customers.

CONCLUSION

Key takeaways

Understanding and protecting IP is essential for **fostering innovation**, securing business interests and keeping a competitive advantage.

- IP turns ideas into protected business assets
- Each type protects something different, from brands to formulas
- SAIP protects IP in Saudi Arabia and supports Vision 2030
- Infringement can lead to costly lawsuits and lost reputation
- Respecting IP is both a legal duty and an ethical one

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Thank you

Questions and discussion

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